

24STCV32585 24STCV32585

County: los-angeles

Division: Civil Law and Motion

Department: 734

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Case Number: 24STCV32585 Hearing Date: September 18, 2026 Dept: 734

The following constitutes the Court's ruling on the ex parte application of Defendant General Motors LLC. The ruling is posted here for the convenience of the parties. The matter will not be called for hearing on September 18, 2026.

The Court has reviewed the ex parte application filed by Defendant General Motors LLC, and finds the matter suitable for decision in chambers without argument. (Code Civ. Proc. § 166(a)(1).)

Defendant requests an order consolidating all hearings on its several recently filed discovery motions, or alternatively, continuing or vacating the trial date.

The application is DENIED.

The court understands Defendant's desire to have the motion heard before trial. However, the limit on the number of available motion hearings is necessary to manage the court's resources. These limits work to the benefit of litigants by ensuring that the court has adequate time to consider each motion that is brought. A request for a specially set hearing is essentially a request to cut in line ahead of parties who have anticipated the need for motion practice and timely reserved their hearings. A specially set hearing takes away precious calendar time from parties who have timely scheduled their motions, and often delays the start of trials or other proceedings. Defendant has failed to show good cause for the request. It is incumbent upon counsel to plan their discovery in a manner that anticipates the necessary lead time for any motions to be heard. Failure to do so is not an exigent circumstance that justifies extraordinary relief pursuant to Rule of Court 3.1202. Moreover, the papers presented by Defendant do not show why, in the exercise of due diligence, the discovery motion at issue could not have been brought sooner.

Unless the time for discovery is extended by stipulation of the parties or an order of the court, general discovery ends 30 days before “the date initially set for the trial of the action” and discovery motions must be heard by the 15th day before trial. (Code Civ. Proc. § 2024.020.) The trial date in this case is October 6, 2026, meaning that discovery motions must be heard no later than September 21, 2026. Defendant’s motions to compel were filed on September 4, 2026, and served by electronic mail, such that the earliest the motion could be heard with statutory notice is September 30, 2026 (16 court days notice (Code Civ. Proc. § 1005) plus two days for service by email (Code Civ. Proc. § 1010.6.)

Since the motions were not filed in time to be heard before the discovery motion cutoff, Defendant would receive a windfall if the Court were to hear the motion without requiring Defendant to make the requisite showing of good cause for extending the discovery motion cutoff, including filing of the meet and confer declaration required by Code of Civil Procedure section 2024.050 when a motion to extend discovery cutoffs is filed. (See *Pelton-Shepherd Indus. v. Delta Packaging Prods.* (2008) 165 Cal.App. 1568, 1586-87 (holding that trial court erred by ruling on post-cutoff discovery motions without first deciding whether good cause existed to reopen discovery.)